



Republika ng Pilipinas
KAGAWARAN NG KATARUNGAN
Department of Justice
Manila

027

DEPARTMENT CIRCULAR NO. _____

SUBJECT : 2022 NPS RULE ON APPEAL

DATE : JUL 13 2022

In the interest of speedy, efficient, and effective administration of justice, pursuant to the provisions of existing laws, this Rule on Appeal from rulings of prosecutors in the National Prosecution Service (NPS) is hereby adopted:

Section 1. The Office of the Secretary of Justice shall review appeals from resolutions of the Prosecutor General in cases subject to its preliminary investigation as referred to it by various government agencies, and from resolutions of the Provincial/City Prosecutors in cases cognizable by the Regional Trial Court.

Section 2. Resolutions of the Provincial/City Prosecutors in cases cognizable by the Metropolitan Trial Court, Municipal Circuit Trial Court, Municipal Trial Court, and Municipal Trial Court in Cities shall be reviewed on appeal by the Prosecutor General in his/her capacity as the Regional State Prosecutor in the National Capital Region and by the Regional State Prosecutors with respect to their respective regions. Cases decided on appeal by the Prosecutor General and by the Regional State Prosecutors under this provision shall be considered final and no longer be appealable to the Office of the Secretary of Justice.

Section 3. Notwithstanding the above, the Secretary of Justice reserves the right to evaluate, in the interest of justice, to afford fair play and prevent the miscarriage of justice, *mutuo proprio* or upon written and signed complaint, any resolution of the Prosecutor General, Regional State Prosecutors and Provincial/City Prosecutors. This residual power of review shall conform with the constitutional requirements of due process and will be covered by a relevant department circular to be issued by the Office of the Secretary of Justice.

Section 4. There shall be formed a Prosecution Integrity Board to monitor, audit from time to time and assess the performance of the Prosecutor General, Regional State Prosecutors and Provincial/City Prosecutors in the conduct of the preliminary investigation and/or appeal. This shall be covered by a relevant department circular to be issued by the Office of the Secretary of Justice.

Section 5. This Circular modifies Department Circular No. 70 dated 3 July 2000 and Department Circular No. 70-A, dated 10 July 2000. All provisions of these two circulars and Department Circular No. No. 18 dated 8 March 2017 not inconsistent with this Circular shall remain in force and effect.

Section 6. This Circular shall take effect fifteen (15) days after publication in two (2) newspapers of general circulation and after copies have been furnished to the Office of National Administrative Registrar (ONAR), UP Law Center, University of the Philippines, Diliman, Quezon City.

JESUS CRISPIN C. REMULLA
Secretary

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